

Smt. Mewati And Anr. v. Anil Kumar Singh, Executive Engineer, M.V.V.N.L., Tanda, Ambedkar Nagar

High Court of Judicature at Allahabad, Lucknow Bench · Single Judge · 21 May 2024 · 2024:AHC-LKO:38354 · Contempt Application (Civil) No. 2024 of 2021 · **Contempt application dismissed and consigned to record; no contempt made out after the 05.01.2022 letter was revoked as compliance with the writ**

HEADNOTE

Civil contempt of a writ directing the Executive Engineer to decide a landowner's representation in the light of Clause 4.5(d) of the U.P. Electricity Supply Code, 2005 does not survive once the letter that had asked the applicants to deposit Rs. 1,36,350 as a connection charge is revoked and that revocation is accepted as compliance. The contempt application was dismissed. The Court did not construe Clause 4.5(d) or decide the pole-erection objection.

FACTUAL SUMMARY

Smt. Mewati and another brought this civil contempt against Anil Kumar Singh, Executive Engineer, Madhyanchal Vidyut Vitran Nigam Ltd., Tanda, Ambedkar Nagar. On 2 November 2020, in Writ Petition No. 18654 (M/B) of 2020, the High Court directed the Executive Engineer to decide their representation in the light of Clause 4.5(d) of the U.P. Electricity Supply Code, 2005 within six weeks. Their grievance was that the Electricity Department was erecting poles on their farm without following Clause 4.5(d).

Instead, a three-line order dated 5 January 2022 asked them to deposit Rs. 1,36,350 as the charge for issuance of electricity connections. Listing orders of 15 February and 12 March 2024 recorded that this did not clearly consider Clause 4.5(d) and treated it as possible non-compliance. On 21 May 2024, counsel for the opposite party informed that Mohit Kumar, Executive Engineer, MVVNL Tanda, had on 6 April 2024 revoked the 5 January 2022 letter; counsel for the applicants did not dispute that the writ had been complied with.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

Contempt of a Clause 4.5(d) representation-direction is not made out once the intervening connection-charge letter is revoked and that is accepted as compliance

QUESTION

Does civil contempt lie of a writ directing the Executive Engineer to decide a landowner's representation in the light of Clause 4.5(d), after the later letter demanding a connection deposit is revoked and the applicants do not dispute compliance?

HOLDING

No. The 02.11.2020 writ in Writ Petition No. 18654 (M/B) of 2020 directed the Executive Engineer to decide the representation in the light of Clause 4.5(d) of the Electricity Supply Code, 2005 within six weeks. The 05.01.2022 letter asking the applicants to deposit Rs. 1,36,350 as the charge for issuance of electricity connections was revoked by order dated 06.04.2024 of Shri Mohit Kumar, Executive Engineer, MVVNL, Tanda, Ambedkar Nagar. Opposite-party counsel submitted that the writ had thereby been complied with; applicants' counsel did not dispute that. No contempt was made out. The application was dismissed and consigned to record. ¶ 1-4

FLAG Contempt dismissed as having lost efficacy. The Court recites the earlier writ's Clause 4.5(d) direction and treats revocation of the 05.01.2022 deposit letter as compliance; it does not construe 4.5(d) or decide the pole objection. Source PDF also contains listing orders of 03.12.2022 (Rajeev Singh J.), 07.02.2024, 15.02.2024 and 12.03.2024 (Shree Prakash Singh J.), and 10.04.2024 (Rajeev Singh J., bailable warrant / personal presence); the judgment under record is 21.05.2024 (2024:AHC-LKO:38354).

clause-4.5d-landowner-objection-to-supply-line The underlying writ required a Clause 4.5(d) decision on a landowner's objection to poles being erected on the farm. This Court did not apply or construe 4.5(d); it dismissed contempt once the 05.01.2022 connection-charge letter was revoked and that revocation was accepted as compliance. Same cluster as SCJ-104, SCJ-120, SCJ-169, SCJ-282. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY**NOT DECIDED — WHETHER ERECTION OF POLES ON THE APPLICANTS' FARM COMPLIED WITH CLAUSE 4.5(D), AND WHETHER A NO-OBJECTION OR ALTERNATIVE ROUTE WAS REQUIRED**

The landowner objection was the subject of the 02.11.2020 writ; this Court did not decide it. ¶ 1-4

NOT DECIDED — LAWFULNESS OF THE RS. 1,36,350 CONNECTION CHARGE DEMANDED ON 05.01.2022

That letter was revoked on 06.04.2024; the charge was not examined on merits. ¶ 1, 3-4

NOT DECIDED — WHETHER THE 06.04.2024 REVOCATION ITSELF DECIDED THE CLAUSE 4.5(D) REPRESENTATION ON MERITS

Accepted as compliance because it was not disputed; not reviewed as a 4.5(d) decision. ¶ 1-4